

permanent injuries.

The Defendant offered settlement in the amount of \$30,000 to Minor, of which \$19,483.11 is to be paid to Petitioner behalf of Minor to be placed into a blocked account. The deduction of \$10,516.89 represents a negotiated deduction from the settlement, is used to satisfy any liens for medical expenses and to pay for attorney's fees and costs incurred. Petitioner prepared a proposed order to deposit funds into a blocked account for the benefit of the Minor.

Ruling

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is **granted**. The Court will execute the Proposed Order Approving Compromise of Minor's Claim and the Proposed Order to Deposit Funds into a Blocked Account lodged on November 7, 2025. No appearance is required at the haring of this Petition.

8. 9:00 AM CASE NUMBER: C25-00116

CASE NAME: RALPH DEAN VS. CHRISTOPHER BEITE

HEARING ON SUMMARY MOTION

FILED BY: DEAN, RALPH

TENTATIVE RULING:

Before the Court is Plaintiff Ralph Dean ("Plaintiff" or "Dean")'s motion for summary adjudication. The Motion relates to Plaintiff's claim for Negligence and Defendant Christopher Beite ("Defendant" or "Beite")'s second affirmative defense of Comparative Fault.

Plaintiff moves for summary adjudication on the grounds that "there is no defense with respect to Plaintiff's claim for Negligence and that Defendant's Second Affirmative Defense of Comparative Fault has no merit." (Notice at 1:9-10.)

For the following reasons, the motion is **denied**.

Brief Factual Allegations

On September 1, 2024 at approximately 10:21 AM, Plaintiff was walking in the street immediately in front of the property located at 5370 Fernbank Drive, Concord, California, 94521. (UMF 1.) The property was owned by Defendant. (UMF 2.) As Plaintiff passed the Premises, an unleashed dog raced out from the side of the Premises, rushing towards Plaintiff and growling, a second dog following seconds later. The dogs approached Plaintiff in a non-friendly manner. The two dogs were owned by Defendant. (UMF 3.) The dogs had been in the backyard of the Premises but were able to escape and go onto the street as the gate was not secured. (UMF 5.)

As the dogs approached, Plaintiff attempted to back up and move away from the dogs, however they continued to growl and move towards and around him, leaving him unable to get away from the dogs. As Plaintiff continued to attempt to move away from the dogs, one dog rapidly ran around his body, racing in front of him. (UMF 9.) The dog's sudden appearance and continued aggression startled Plaintiff, who attempted to stop and avoid making contact with the dog. (UMF 10.) As Plaintiff attempted to back up and get away from the dogs, the dogs continued to advance. Plaintiff ultimately lost his balance and fell to the ground. (UMF 11.) Plaintiff suffered personal injuries as a result of the

incident. (UMF 13.)

Legal Standard

A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact ... ” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (*Id.* at 851.)

A plaintiff moving for summary judgment satisfies the initial burden by submitting undisputed evidence “showing that there is no defense to a cause of action [because] the party has proved each element of the cause of action entitling the party to judgment on the cause of action.” (Code Civ. Proc. § 437c, subd. (p)(1).)

However, “[i]f the plaintiff is unable to meet her burden of proof regarding an essential element of her case, all other facts are rendered immaterial.” (*Saelzler v. Advanced Group 400* (2001) 25 Cal.4th 763, 780, quoting *Leslie G. v. Perry & Associates* (1996) 43 Cal.App.4th 472, 482.)

If the moving party meets its burden, the burden then shifts to the party opposing summary judgment to show, by reference to specific facts, the existence of a triable, material issue as to a cause of action or an affirmative defense. (*Aguilar, supra*, 25 Cal.4th at p. 855; *Villacres v. ABM Industries, Inc.* (2010) 189 Cal.App.4th 562, 575.)

The Court notes that California law does not require a moving Plaintiff to negate a Defendant’s affirmative defenses to satisfy its initial burden. (See *Aguilar, supra*, 25 Cal.4th at p. 853 [‘summary judgment law in this state no longer requires a plaintiff moving for summary judgment to disprove any defense asserted by the defendant as well as prove each element of his own cause of action.... All that the plaintiff need do is to “prove[] each element of the cause of action” ’].)

Analysis

Plaintiff, relying primarily on Defendant’s response to requests for admissions, argues that it is undisputed that Defendant was negligent and that his negligence caused Plaintiff to suffer injury. In opposition, Defendant argues that there are triable issues of material facts with respect to both breach and foreseeability.

“To establish a cause of action for negligence, the plaintiff must show that the ‘defendant had a duty to use due care, that he breached that duty, and that the breach was the proximate or legal cause of the resulting injury.’ [Citation.] Recovery for negligence depends as a threshold matter on the existence of a legal duty of care. [Citation.] [¶] Duty is not universal; not every defendant owes every plaintiff a duty of care. A duty exists only if “‘the plaintiff’s interests are entitled to legal protection against the defendant’s conduct.’”” (*Brown v. USA Taekwondo* (2021) 11 Cal.5th 204, 213.)

For dog bite cases, “When an owner has reason to believe his dog is savage, ill-tempered, mischievous or dangerous to persons and property, he may be kept only at the owner’s risk, who will become liable for damages resulting from such conduct of the dog which exhibits such known traits or character.” (*Drake v. Dean* (1993) 15 Cal.App.4th 915, 922.) The court further stated that “A negligence cause of action arises when there is ineffective control of an animal in a situation where it would reasonably be expected that injury could occur, and injury does proximately result from the negligence. The amount of control required is that which would be exercised by a reasonable person based upon the total

situation at the time, including the past behavior of the animal and the injuries that could have been reasonably foreseen.” (*Id.* at 926.) Lastly, the Court distinguished between common law strict liability and negligence: “If a plaintiff proves scienter, a dog-owner is absolutely liable for injuries caused by the dangerous characteristic of the dog. If, on the other hand, the plaintiff is unable to prove that the owner knew or should have known of the dog's dangerous characteristics, then the owner is liable only if the plaintiff is able to prove that the owner acted negligently in keeping the dog.” (*Id.* at 928.)

As a threshold issue, the Court is not convinced that Plaintiff has met his initial burden to show that Plaintiff was wholly negligent. While Plaintiff admits that his negligence was a substantial factor in causing plaintiff harm (Response to RFA No. 3), he clearly denies that his negligence was the “sole, legal cause” of the incident. (Response to RFA No. 5.) Additionally, characterizing his deposition testimony of “My dog got out and barked and caused this” (Beite Depo. at 11:15) as an admission of total liability on Plaintiff’s claim for negligence is somewhat disingenuous.

Here, Defendants have adduced evidence that they never received any complaints about the dogs in the three years preceding the subject accident (UMF 30); that the dogs had no history of escaping the yard or exhibiting aggressive or dangerous behavior towards any person (UMF 31); and that it was uncommon for the dogs to play in the backyard (UMF 33.) The Court is inclined to agree with Defendant that “[w]hether the latch becoming undone rises to a breach of duty is a factual question for a trier of fact to determine.” (Opp. at 6:26-27.)

The Court finds the opinion in *Drake v. Dean* instructive. In *Drake*, the court discussed the foreseeability of harm that will give rise to a duty to protect third persons from a dog. A keeper of a dog will be liable for negligence where there is proof that the dog posed a reasonably foreseeable risk of harm to others, and the keeper failed to exercise ordinary care to avert that risk. (*Drake, supra*, 15 Cal.App.4th at p. 931, see *id.* at p. 925 [“In determining the keeper’s liability for negligence for injuries inflicted by a domestic animal, the criterion usually adopted is one of reasonable anticipation of the occurrence, i.e., foreseeability”].) The court recognized that “negligence may be predicated on the characteristics of the animal which, although not abnormal to its class, create a foreseeable risk of harm. As to those characteristics, the owner has a duty to anticipate the harm and to exercise ordinary care to prevent the harm. [Citation.] ‘The common law [] provided that the owner of an animal which was not vicious . . . but which was prone to some other potentially harmful behavior, could be held liable under a theory of negligence for any injury proximately caused by such behavior. In such cases the owner was only liable if, having knowledge of the particular propensities which created a foreseeable risk of harm, he failed to exercise reasonable care in control of the animal.’” (*Id.* at p. 929.) Similarly, a person who keeps a dog “is required to know its normal habits and tendencies,” and therefore is “required to realize that even ordinarily gentle animals are likely to be dangerous under particular circumstances and to exercise reasonable care to prevent foreseeable harm.” (*Id.* at p. 925, quoting Rest.2d Torts, § 518, com. h.)

The *Drake* court recognized that “it is not unknown for dogs to jump on people,” and therefore “it may reasonably be anticipated that a dog which has jumped on people before will do it again.” (*Drake, supra*, 15 Cal.App.4th at p. 931.) In *Drake*, because the plaintiff had presented evidence that the defendant knew the dog “‘had a habit of jumping on people,’” the court concluded that “an inference could be drawn that such conduct was reasonably foreseeable.” (*Ibid.*)

Given the undisputed evidence that the dogs had no history of escaping the yard or exhibiting aggressive or dangerous behavior towards any person (UMF 31), the Court cannot conclude as a matter of law that it was foreseeable that they would escape and startle Plaintiff.

Plaintiff's motion for summary adjudication is **denied**.

Evidentiary Objections

Neither party made any evidentiary objections.

9. 9:00 AM CASE NUMBER: C25-00514

CASE NAME: ARACELI CALDERON VS. MARIE VALENCIA

*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: VREJ V. GARABEDIAN

FILED BY: VALENCIA, ENRIQUE

TENTATIVE RULING:

Defendants' former counsel, Vrej Garabeian's Motion to be Relieved as Counsel for Defendants Enrique and Marie Valencia, filed on September 10, 2025, is **moot**. A Substitution of Attorney form was filed on September 22, 2025, wherein Defendants agreed to become self-represented litigants. No appearance is required at the hearing on January 7, 2026.

10. 9:00 AM CASE NUMBER: C25-00842

CASE NAME: CHRIS CARVALHO VS. POWIS PARKER, INC.

HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT

FILED BY: POWIS PARKER, INC.

TENTATIVE RULING:

Before the Court is a demurrer to Plaintiff's first amended complaint. For the reasons set forth, the demurrer is **sustained**, and the case is **dismissed without prejudice**.

Background

Plaintiff alleges he is the assignee for collection of claims of the law firm Gagen, McCoy, McMahon, Koss, Markowitz & Fanucci, a professional corporation ("Assignor") against defendant Powis Parker, Inc. (First Am. Compl. ("FAC") ¶¶ 1, 2.) Plaintiff alleges Powis owes approximately \$62,000 for legal services rendered by the Assignor. Plaintiff asserts four common counts for recovery of the fees in the FAC.

Legal Standards for Ruling on A Demurrer

In ruling on a demurrer, the Court must accept as true all well-pled factual allegations of the complaint, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865; *Carloss v. County of Alameda* (2015) 242 Cal. App.4th 116, 123.) In determining whether the complaint states a claim for relief, the Court gives the complaint "a reasonable interpretation, reading it as a whole and its parts in their context. [Citation omitted.]" (*Evans v. City of Berkeley* (2006) 38 Cal. 4th 1, 6.) The Court also considers matters of which the Court can properly take judicial notice. (*Carloss, supra*, 242 Cal.App.4th at 123; *Evans, supra*, 38 Cal.4th at 6.)

Kane Declaration, Request for Judicial Notice, and Plaintiff's Evidentiary Objections Thereto

Plaintiff objects to the Kane Declaration and Defendant's asking the Court to take judicial notice of the exhibits attached to the Kane Declaration in support of the demurrer. The notice of the demurrer